

HOUSE No. 231**The Commonwealth of Massachusetts**

PRESENTED BY:

Kimberly N. Ferguson*To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:*

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to establish an acquired brain injury advisory board.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Kimberly N. Ferguson</i>	<i>1st Worcester</i>	<i>1/13/2025</i>
<i>Michael D. Brady</i>	<i>Second Plymouth and Norfolk</i>	<i>2/27/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>1/27/2025</i>
<i>Rodney M. Elliott</i>	<i>16th Middlesex</i>	<i>1/31/2025</i>
<i>Ryan C. Fattman</i>	<i>Worcester and Hampden</i>	<i>4/30/2025</i>
<i>Paul R. Feeney</i>	<i>Bristol and Norfolk</i>	<i>2/13/2025</i>
<i>Paul K. Frost</i>	<i>7th Worcester</i>	<i>2/3/2025</i>
<i>Colleen M. Garry</i>	<i>36th Middlesex</i>	<i>1/25/2025</i>
<i>Natalie M. Higgins</i>	<i>4th Worcester</i>	<i>1/24/2025</i>
<i>Vanna Howard</i>	<i>17th Middlesex</i>	<i>2/14/2025</i>
<i>Steven S. Howitt</i>	<i>4th Bristol</i>	<i>2/10/2025</i>
<i>Hannah Kane</i>	<i>11th Worcester</i>	<i>1/16/2025</i>
<i>Sally P. Kerans</i>	<i>13th Essex</i>	<i>2/25/2025</i>
<i>David Paul Linsky</i>	<i>5th Middlesex</i>	<i>1/22/2025</i>
<i>John J. Marsi</i>	<i>6th Worcester</i>	<i>6/10/2025</i>
<i>Joseph D. McKenna</i>	<i>18th Worcester</i>	<i>1/31/2025</i>
<i>Paul McMurtry</i>	<i>11th Norfolk</i>	<i>2/18/2025</i>
<i>Jacob R. Oliveira</i>	<i>Hampden, Hampshire and Worcester</i>	<i>2/7/2025</i>

<i>Lindsay N. Sabadosa</i>	<i>1st Hampshire</i>	<i>1/25/2025</i>
<i>Priscila S. Sousa</i>	<i>6th Middlesex</i>	<i>3/19/2025</i>
<i>Thomas M. Stanley</i>	<i>9th Middlesex</i>	<i>4/1/2025</i>
<i>Steven Ultrino</i>	<i>33rd Middlesex</i>	<i>3/5/2025</i>
<i>Richard G. Wells, Jr.</i>	<i>7th Norfolk</i>	<i>4/10/2025</i>
<i>Susannah M. Whipps</i>	<i>2nd Franklin</i>	<i>1/31/2025</i>
<i>Jonathan D. Zlotnik</i>	<i>2nd Worcester</i>	<i>3/14/2025</i>

HOUSE No. 231

By Representative Ferguson of Holden, a petition (accompanied by bill, House, No. 231) of Kimberly N. Ferguson and others for legislation to establish an acquired brain injury advisory board (including members of the General Court) to review, advise and report on services, supports and public policy for individuals with acquired brain injuries and their families. Children, Families and Persons with Disabilities.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to establish an acquired brain injury advisory board.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. An acquired brain injury advisory board shall be established to collaborate
2 with appropriate state secretariats and their agencies, members of the legislature, individuals with
3 acquired brain injuries and their family members, providers, clinicians, advocacy groups and
4 other key stakeholders to review, advise, and report on services and supports, and public policy
5 there under for individuals with acquired brain injuries and their families.

6 SECTION 2: Said advisory board shall consist of 2 members of the Senate, 1 of whom
7 shall be appointed by the President, 1 of whom shall be appointed by the Minority Leader; 2
8 members of the House of Representatives, 1 of whom shall be appointed by the Speaker, 1 of
9 whom shall be appointed by the Minority Leader; the Secretary of Health and Human Services or
10 their designee; the Secretary of the Executive Office of Public Safety or their designee; the
11 Secretary of Elder Affairs or their designee; the Secretary of Veterans Services or their designee;

the Commissioner of the Department of Public Health or their designee; 2 members from the MassAbility, 1 who shall be the Commissioner or their designee, 1 who shall be appointed by the Commissioner; the Commissioner of the Department of Developmental Services or their designee; the Commissioner of the Department of Mental Health or their designee; 2 members of the MassHealth, 1 who shall be the Director or their designee, and 1 who shall be the Director of Home and Community-Based Services Waiver Administration or their designee; the Commissioner of the Division of Insurance or their designee, the Executive Director of the Center for Health Information and Analysis (CHIA) or their designee, the Chief Executive Officer at the Brain Injury Association of Massachusetts, Inc. or their designee; and 8 members who shall be appointed by the Governor, 2 of whom shall be family members, caretakers or significant others of a person with acquired brain injury, 2 of whom shall be individuals with acquired brain injury, including but not limited to individuals who have experienced traumatic brain injury, stroke, brain tumors or other disorders, 1 of whom shall be a community based provider of services to individuals with acquired brain injury 1 of whom shall be a community based provider of services to individuals with acquired brain injury serving minorities and other underserved populations, 1 of whom shall be from a disability advisory group or a protection and advocacy representative, 1 of whom shall be a clinician.

SECTION 3. Said advisory board directives shall include, but are not limited to, reviewing data concerning the epidemiology of acquired brain injury and the needs of individuals with acquired brain injury and their families; reviewing efforts to increase access to rehabilitative, residential and integrated community based support services for persons with acquired brain injury; monitoring the implementation of the acquired brain injury commission

34 recommendations regarding the improvement of such services; and reviewing ongoing state
35 public policy initiatives and state funding.

36 SECTION 4: Said advisory board shall file a biennial report with the Governor, the
37 Secretary of the Executive Office of Health and Human Services, the Senate President, the
38 Speaker of the House of Representatives, and the clerks of the Senate and House of
39 Representatives. Said report shall include but not be limited to a summary of ongoing needs of
40 individuals with acquired brain injury, the status of progress made in increasing access to
41 rehabilitative, residential and integrated community-based support services for individuals with
42 acquired brain injury; and the status of progress made in implementing the acquired brain injury
43 commission recommendations regarding the improvement of such services.

44 SECTION 5. Said advisory board shall meet quarterly, at minimum, and may establish
45 subcommittees as necessary to carry out its objectives.